In 1977, the Supreme Court ruled that the transfer of high court judges could be resorted to only as an exceptional measure and only in public interest and not by way of punishment. Again in 1994, the Supreme Court held that judicial review is necessary to check arbitrariness in transfer of judges. But, only the judge who is transferred can challenge it.

In the *Third Judges* case (1998), the Supreme Court opined that in case of the transfer of high court judges, the Chief Justice of India should consult, in addition to the collegium of four seniormost judges of the Supreme Court, the chief justice of the two high courts (one from which the judge is being transferred and the other receiving him/her). Thus, the sole opinion of the chief justice of India does not constitute the 'consultation' process.

ACTING, ADDITIONAL AND RETIRED JUDGES

Acting Chief Justice The President can appoint a judge of a high court as an acting chief justice of the high court when:

1. the office of chief justice of the high court is vacant; or
2. the chief justice of the high court is temporarily absent; or
3. the chief justice of the high court is unable to perform the duties of his/her office.

Additional and Acting Judges The President can appoint duly qualified persons as additional judges of a high court for a temporary period not exceeding two years when:

1. there is a temporary increase in the business of the high court; or
2. there are arrears of work in the high court.

The President can also appoint a duly qualified person as an acting judge of a high court when a judge of that high court (other than the chief justice) is:

1. unable to perform the duties of his/her office due to absence or any other reason; or
2. appointed to act temporarily as chief justice of that high court.

An acting judge holds office until the permanent judge resumes his/her office. However, both the additional or acting judge cannot hold office after attaining the age of 62 years.

Retired Judges At any time, the chief justice of a high court of a state can request a retired judge of that high court or any other high court to act as a judge of the high court of that state for a temporary period. He/she can do so only with the previous consent of the President and also of the person to be so appointed. Such a judge is entitled to such allowances as the President may determine. He/she will also enjoy all the jurisdiction, powers and privileges of a judge of that high court. But, he/she will not otherwise be deemed to be a judge of that high court.

INDEPENDENCE OF HIGH COURT

The independence of a high court is very essential for the effective discharge of the duties assigned to it. It should be free from the encroachments, pressures and interferences of the executive (council of ministers) and the legislature. It should be allowed to do justice without fear or favour.